

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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MAGED ALGUTAINI,

Index No.:

Plaintiff,

The Basis of Venue is:
Location of Incident

-against-

THE CITY OF NEW YORK, NYPD POLICE DETECTIVE
JOSEPH SPATARO, Shield No. 4892, and NYPD POLICE
OFFICERS JOHN DOES NUMBERS 1-10,Plaintiff designates Bronx
County as the place of trial.

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
January 18, 2023

Yours, etc.

Lara Belkin, Esq.

Lara Belkin, Esq.

Shulman-Hill, PLLC

Attorneys for Plaintiff

1 State Street Plaza

15th Floor

New York, New York 10004

(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007
NYPD POLICE DETECTIVE JOSEPH SPATARO, SHIELD NO. 4892, Vice
Enforcement Division, Zone 2; 1 Police Plaza, New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X

MAGED ALGUTAINI,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD POLICE DETECTIVE
JOSEPH SPATARO, Shield No. 4892, and NYPD POLICE
OFFICERS JOHN DOES NUMBERS 1-10,

Defendants.

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff MAGED ALGUTAINI, by his attorneys, Shulman-Hill, PLLC, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the Fourth and Fourteenth Amendments to the United States Constitution. On October 29, 2020, at approximately 12:00 A.M., plaintiff MAGED ALGUTAINI was subjected to an unlawful stop, frisk, search, use of excessive force, detention and false imprisonment by defendant NYPD Officers, while lawfully present inside a bodega, located at 1403 Bronx River Avenue in Bronx, NY. Plaintiff spent approximately eight hours unlawfully in police custody at the 43rd Precinct. Thereafter, the defendant police officers denied plaintiff the right to a fair trial by forwarding false information to the Bronx District Attorney's Office. All charges against Plaintiff were dismissed on or around March 19, 2021. Plaintiff was deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802 and his constitutional, common law and statutory rights when the individual defendants unlawfully stopped, detained, assaulted, battered, subjected to excessive force, passed along false accusations to prosecuting attorneys and engaged in the malicious prosecution of Plaintiff, in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff MAGED ALGUTAINI is a resident of the state of New York.
3. NYPD POLICE DETECTIVE JOSEPH SPATARO, Shield No. 4892, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. On the date of the subject incident, NYPD POLICE DETECTIVE JOSPEH SPATARO, Shield No. 4892, was assigned to the NYPD Vice Enforcement Division.
5. NYPD POLICE DETECTIVE JOSEPH SPATARO, Shield No. 4892, is being sued in his individual and official capacities.
6. NYPD POLICE OFFICERS JOHN DOES NUMBERS 1-10, are and were at all times relevant herein, officers, employees, and agents of the New York City Police Department.
7. NYPD POLICE OFFICERS JOHN DOES NUMBERS 1-10 are being sued in their individual and official capacities.
8. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
9. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained, managed, supervised and controlled the New York City Police Department ("NYPD") as part of an in conjunction with its municipal function.
10. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
11. Plaintiff has sustained damages in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

12. On October 29, 2020, at approximately 12:00 a.m., Plaintiff was lawfully present inside a bodega at 1403 Bronx River Avenue in Bronx, NY, when defendant police officers unlawfully stopped, searched, subjected to excessive force, unlawfully detained, and falsely imprisoned the plaintiff.
13. Plaintiff was in the restroom of the bodega when he suddenly heard loud noises from outside.

14. Plaintiff emerged from the restroom to find defendant Police Officers had stormed the bodega, using flashing lights and barring anyone from leaving while they performed an unlawful search of the premises.
15. The defendant officers claimed to have found loose marijuana by the register, but the plaintiff maintained that he had no knowledge of its presence, nor did he ever see what they claimed to have found.
16. The defendant officers found no other contraband in their unlawful search of the bodega, including in the back rooms.
17. It was at this point that the defendant officers began to arrest the Plaintiff, subjecting him to an unlawful pat-down search and restraining him with metal handcuffs.
18. At no time prior to being stopped by the officers did Plaintiff commit a crime or behave in a manner that gave the police officers a reasonable and objective basis to believe he had committed or was committing a crime.
19. At no point did Plaintiff resist arrest in any way.
20. The defendant officers searched Plaintiff and found no contraband or anything illegal on him.
21. Defendant officers then transported Plaintiff to the 43rd Precinct where Plaintiff was fingerprinted, photographed, and unlawfully detained in a holding cell.
22. The Defendant Officers falsely stated to the Bronx County District Attorney's Office that Plaintiff had committed the crimes of Criminal Possession of Marijuana, Criminal Nuisance, and Administrative Code – Emergency Order Violation, despite knowing that they lacked a legal and factual basis to allege that Plaintiff committed any crime.
23. After approximately eight hours unlawfully in police custody, Plaintiff was released on his own recognizance with a Desk Appearance Ticket.
24. All charges against Plaintiff were thereafter dismissed in their entirety on or around March 19, 2021.
25. Some of the police office defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, seizure, false arrest, denial of fair trial, and excessive force used against the plaintiff.
26. The unlawful stop, question, frisk, search, false arrest, false imprisonment, unlawful seizure, and excessive force against the plaintiff by the individually named defendants caused the plaintiff to sustain physical, psychological, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

27. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 26 with the same force and effect as if more fully set forth at length herein.
28. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, seized, unlawfully searched, falsely arrested, falsely imprisoned, subjected to denial of his due process rights in violation of plaintiff's right to be free of an unreasonable seizure and denial of due process under the Fourth and Fifth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION**False Arrest and False Imprisonment**

29. The plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 28 with the same force and effect as if more fully set forth at length herein.
30. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, the plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
31. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.
32. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
33. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
34. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION**Unlawful Stop, Question, and Frisk**

35. The plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs 1 through 34 with the same force and effect as if more fully set forth at length herein.
36. The illegal approach, pursuit, stop, questioning, and frisk employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

37. The conduct of defendants in stopping, frisking, and searching plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.
38. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.
39. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
40. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
41. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

42. The plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 41 with the same force and effect as if more fully set forth at length herein.
43. The illegal approach, pursuit, stop and search of plaintiff's person employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.
44. Defendants lacked probable cause to search plaintiff.
45. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.
46. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
47. The City, as the employer of the officer defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.
48. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights Denial of Right to Fair Trial/Due Process

49. The plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.
50. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office
51. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office
52. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.
53. In withholding/creating false evidence against plaintiff MAGED ALGUTAINI, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.
54. As a result of the foregoing, plaintiff MAGED ALGUTAINI sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings, and deprivation of his constitutional rights.
55. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
56. The City, as the employer of the officer defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.
57. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

58. The plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 57 with the same force and effect as if more fully set forth at length herein.
59. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, MAGED ALGUTAINI. The acts and conduct of the defendants were the direct and the proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

60. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.
61. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
62. The City, as the employer of the officer defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.
63. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

64. The plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 63 with the same force and effect as if more fully set forth at length herein.
65. The use of excessive force by defendants by, amongst other things, seizing and handcuffing him, constituted objectively unreasonable physical seizures of Plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.
66. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

EIGHTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

67. The plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 66 with the same force and effect as if more fully set forth herein.
68. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train, and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.
69. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

Failure to Intervene

70. The plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 69 with the same force and effect as if more fully set forth at length herein.
71. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.
72. Defendants failed to intervene to prevent the unlawful conduct described herein.
73. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subject to other physical constraints.
74. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.
75. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
76. The City, as the employer of the officer defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.
77. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

78. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff MAGED ALGUTAINI demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law, and that the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988 and 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 801 *et seq.*.

Dated: New York, New York
January 18, 2023

By: Lara Belkin, Esq.
Lara Belkin, Esq.

Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007
NYPD POLICE DETECTIVE JOSEPH SPATARO, SHIELD NO. 4892, Vice
Enforcement Division, Zone 2; 1 Police Plaza, New York, NY 10038

ATTORNEY'S VERIFICATION

Lara Belkin, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
January 18, 2023


LARA BELKIN